

ELIZABETH II



1966 CHAPTER xii

An Act to confer powers upon the Scottish Union and National Insurance Company with respect to the distribution of capital profits and to empower the Norwich Union Fire Insurance Society Limited to acquire compulsorily shares in the said Company; and for other purposes. [3rd August 1966]

WHEREAS the Scottish Union and National Insurance Company (hereinafter called "the Company") was incorporated by the Scottish Union and National Insurance Company's Act, 1878:

1878 c. liii.

And whereas by the Scottish Union and National Insurance Company's Act, 1956 (hereinafter called "the Act of 1956") all existing Acts relating to the Company were repealed and it was provided that notwithstanding such repeal the Company should remain incorporated by the name of "the Scottish Union and National Insurance Company" as it was immediately before the passing of the Act of 1956:

1956 c. lxxv.

And whereas by the Act of 1956 powers were conferred upon the Company for the regulation and administration of its affairs and the conduct of its business:

And whereas it is expedient that the Company should have power from time to time to distribute capital profits of the Company among the shareholders and that the Act of 1956 should be amended in that behalf as hereinafter provided:

And whereas in the year 1959, by virtue of a scheme entered into between the Norwich Union Fire Insurance Society Limited (hereinafter called "the Society") and the majority of the shareholders in the Company, approximately 95 per centum of the shares in the Company were acquired by the Society and subsequently further shares in the Company were acquired by the Society at the price paid under the said scheme in relation to shares of the same class:

And whereas the Society now holds 99.99 per centum of all the shares in the Company and it is expedient that the Society should be empowered to acquire the remainder of the shares in the Company in the manner and on the terms hereinafter provided:

And whereas it is expedient that such other provisions should be made as are in this Act contained:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title
and citation.

1.—(1) This Act may be cited as the Scottish Union and National Insurance Company's Act 1966.

1956 c. lxxv.

(2) The Scottish Union and National Insurance Company's Act, 1956, and this Act may be cited together as the Scottish Union and National Insurance Company's Acts, 1956 and 1966.

Interpretation.

2. In this Act unless the context otherwise requires the following words and expressions have the meanings hereby assigned to them, that is to say:—

"Company" means the Scottish Union and National Insurance Company;

"Society" means the Norwich Union Fire Insurance Society Limited;

“ minority shareholder ” means a shareholder in the Company whose shares had not before the commencement of this Act been acquired by the Society;

“ Act of 1956 ” means the Scottish Union and National Insurance Company's Act, 1956.

1956 c. lxxv.

3. Section 25 (Dividends and reserve funds) of the Act of 1956 shall be read and have effect as if, in subsection (1) thereof, in place of the words “ of the clear profits of the business ” there were substituted the words “ of the profits ”.

As to distribution of capital profits.

4.—(1) The Society may, within two months of the commencement of this Act, give notice in writing to any minority shareholder that it desires to acquire his shares in the Company and where such notice is given the Society shall, subject to the provisions of the following subsections, be entitled and bound to acquire those shares for the price of 75 shillings per share for every “ A ” share and 150 shillings per share for every ordinary share respectively held by him in the Company.

Power of Society to acquire shares of minority shareholders.

(2) Any minority shareholder to whom notice has been given as aforesaid who is of the opinion that the price payable by the Society for his shares in accordance with the foregoing subsection is less than the fair value of such shares may, within one month of the service of such notice, by notice in writing to the Society require that a submission be made by the Society to an accountant to be nominated by the President of the Institute of Chartered Accountants of Scotland to declare the fair value of his shares on 27th November, 1965, and in such case the fair value declared as aforesaid shall be the price payable by the Society for such shares.

(3) All costs, charges and expenses of and incidental to the making of any such submission or nomination as aforesaid and the fees of any nominated accountant in connection therewith shall be paid by the Society.

(4) Where a notice has been given by the Society under subsection (1) of this section the Society shall, on the expiration of one month from the date on which notice has been given, or, in the case of a minority shareholder on whose requisition a submission for a declaration has been made in accordance with the provisions of subsection (2) of this section, after the making of such declaration, transmit a copy of the notice and, where applicable, of the declaration to the Company together with an instrument of transfer executed on behalf of the minority shareholder concerned by any person appointed by the Society and on its own behalf by the Society and pay to the Company the amount representing the price payable by the Society for the shares which by virtue of this section the Society is entitled to acquire, and the Company shall thereupon register the Society as the holder of those shares.

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(5) Any sums received by the Company under this section shall be paid to the several persons entitled to the shares in respect of which the said sums were respectively received or, in the case of failure to accept such payment by any of such persons, shall be paid into a separate bank account and held by the Company on trust for such persons according to their respective entitlements.

(6) A notice given under subsection (1) of this section shall be accompanied by a copy of this section.

Costs of Act.

5. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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